UNIVERSITY OF PORT HARCOURT
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TOPIC:THE LOCAL GOVERNMENT SYSTEM

There are three tiers of government in Nigeria: Federal, State and local government. Nigeria as a nation state is bereft with the problem of heterogeneity in terms of peoples, race, linguistic differences and even culture. This scenario points to the fact that each and every facet of the nation's political life cannot be completely divorced from the cradle of ethnic identifications. Hence, there is every need, right from the pre-colonial epoch to the present post-colonial Nigeria to rise up to the challenges of grassroots mobilization and development in order to better the life of the people. Administrative law is more about the interest of the people.

Local or grassroots government may be defined as having been established by law to perform specific functions within defined areas. A complex nation like Nigeria, with its many ethnic groups within a divergent and diverse culture, requires a high degree of decentralization, which they accomplish by creating local government authorities. These phenomena seem to have attracted a lot of interest at the global scheme of things as it becomes pertinent to diversify government's day to day activities for efficiency and administrative effectiveness. This global interest in local governments as an agent of mass mobilization and development has also given rise to series of scholarly postulations. One striking aspect of this state of affairs is that every scholar of public administration seems to possess personal tone in respect to this subject matter of local administration in its conceptual point of view. In other words, it is difficult to conceptualize the term: "Local government".

Orewa and Adewumi define local government as: "A system of local communities and towns which are organized to maintain law and order; provide some limited range of social services and co-operation of the inhabitants in joint endeavors towards the improvement of their conditions of living…" The Nigerian Constitution provides the local government with a formal organizational framework which is a moving force behind the smooth conduct of the affairs of grassroots as well as regulate the actions or inactions of members within that community. Local government has been described as the grassroots government. It is the third tier of government. A democratically and efficiently administrative local government system is the best manifestation of government of the people by the people and for the people as Abraham Lincoln famously described democracy.

There is no gainsaying that the purpose for the creation of local government as a tier of government is to enable people, for whom government at all levels are proclaimed to exist, have the opportunity to participate in governance by way of choice of officials, decision making, benefiting from development, contributing to financing etc.

BRIEF HISTORY OF LOCAL ADMINISTRATION IN NIGERIA (read further by students)

Local government system is not new to Nigeria but dates back to the pre-colonial Nigeria where traditional institutions were used in the indirect model of British administration considering the shortage of manpower, communication systems, language barrier, etc. Conversely, we can rightly say that aside from the pre-colonial era, the local government system in Nigeria spanned through several phases across board. Local government administration waded through both civilian and military regimes alike with various attendant modifications and alteration of nomenclatures and administrative styles, each of which attempts to create a border line with its predecessors putting its policy orientations and framework into considerations. Although, this depends on the character of the leadership in question at any moment in time. Thus, while most civilian/military administrations sought to project the entire shape, organogram and administrative integrity of local entities, others have seen no need to do so.

Historically, the indigenous communities or villages of Nigeria are veritable samples of local government system anywhere in the world. The villages were centers of government activities ranging from preservation of territorial integrity of the community to sanitation, raising of funds, social welfare issues such as registration of birth, death, marriages and burials, appointment of representatives and leaders etc.

LOCAL GOVERNMENT UNDER THE CONSTITUTION

The local government system in Nigeria is as much a constitutional institution as State and Federal governments. Since local government exercises governmental powers, it is also a body that exercises administrative powers and functions. **Section 7 of the 1999 Constitution** guarantees the system of local government by democratically elected local government councils; and accordingly, the Government of every State shall, subject to section 8 of the Constitution, ensure the existence of local government councils under a Law which provides for the establishment, structure, composition, finance and functions of such councils. Local government, as was mentioned earlier, represents people at the grassroots. **Section 8 (1) and (2) of the constitution** went as far as providing that a new state cannot be created or a boundary adjustment carried out in a state without the a request for the creation of such state, being supported by at least two-thirds majority of members (representing the area demanding the creation of the new State) in each of the following, namely -
(i) the Senate and the House of Representatives,
(ii) the House of Assembly in respect of the area, and
(iii) the local government councils in respect of the area, is received by the National Assembly.

SETTING UP OF LOCAL GOVERNMENT CARETAKER COMMITTEES

The position of the law is that only democratically elected local government councils are established and guaranteed by Section 7(1) of the 1999 Constitution. Thus, local government councils by appointment or appointed local government councils are not permitted and are unknown to the 1999 Constitution. There are four implications of this position, namely:

- Local Government Caretaker Committees are illegal, unconstitutional and null and void.
- The Governor of a State lacks the *vires* to dissolve democratically elected Local Government Councils before the expiration of the tenures prescribed in the State Local Government Law. See **Governor of Ekiti State v. Olubunmo & 13 Ors (2017) 3 NWLR (Pt. 1551) 1 (Ratios 2-7);** See also **Federal Republic of Nigeria v Solomon (2018) 7 NWLR (Pt. 1618) 201 (Ratio7);** See further **In re: Maduike (2019) 7 NWLR (Pt. 1671) 255 (Ratio 8)**
- State Laws which give State Governors power to dissolve democratically elected local government councils are unconstitutional, null and void and of no effect.
- State Laws which give State Governors power to appoint caretaker committees in place of democratically elected local government councils are unconstitutional, null and void and of no effect. See **Akpan v Umah (2002) 7 NWLR (Pt. 767) 701 (Ratios 1-3)**

In the case of **Governor of Ekiti State v. Olubunmo & 13 Ors** the governor acting under section 23B (i) and (ii) of the Ekiti State Local Government Administration (Amendment) Law 2001 which, duly empowered the State Governor to dissolve the sixteen Local Government Councils dissolved the sixteen Local Government Councils. The respondents contended that the said section 23B (i) and (ii) of the Ekiti State Local Government Administration (Amendment) Law 2001 stands in conflict with Section 7(1) of the 1999 Constitution as amended. The Appellants argued that it is a legislation, that is lawfully passed by the Ekiti State House of Assembly given its powers under section 4(6) and 7(1) of the Constitution. The court held that the provision of the Constitution has been breached. Appellants further contend that there is no inconsistency between Section 23B (i) and (ii) of the Ekiti State Local Government Administration (Amendment) Law. That they removed the respondents in the interest of the public as well as Section 7 of the Constitution. The court held the dissolution null and void. The provisos to the Section read: "23B Governor's power of dissolution:

(1) Provided always that the Governor is by this law empowered to dissolve Local Government Councils for over-riding public interest subject to the two thirds majority approval of members of the House of Assembly.

(2) Such dissolution shall not exceed a period of twelve calendar months wherein the Governor shall have power to appoint a seven-member caretaker committee out of which a chairman shall be appointed pending the conduct of election to occupy the office of the Chairman."

Certainly, Section 4(6) of the 1999 Constitution as amended empowers the Ekiti State House of Assembly to enact laws for the good governance of the state. It reads:

4(6) - "The legislative powers of a State of the Federation shall be vested in the House of Assembly of the State."

Section 7 of the Constitution guaranteed democratically elected system of Local Government and accordingly the Government of every State shall subject to Section 8 of this Constitution, ensure their existence under a law which provides for the establishment, structure, composition, finance and functions of such councils. A community reading of the foregoing provisions makes one conclusion necessary: that the Ekiti State House of Assembly is empowered to make laws for the function of Local Government Councils in the State provided such laws do not temper with or abrogate the guaranteed existence of the democratically elected councils in the State.

The court further asserts that the governor failed to establish any fact which amounts to overriding public interest as contained in the section 23B of the Ekiti State Local Government Administration (Amendment) Law. And even if such fact should exist, it will not engulf the 16 Local government councils at the same time.

Despite the wonderful provision in the constitution for a democratically constituted local government, what is obtained in practice is quite opposite. Most states in Nigeria since 1999 that Nigeria started experiencing democratic government are yet to conduct a free, fair and credible elections for various local governments. Most Governors prefer working with Caretaker Committees and even when the Governors decide to conduct an election, it is usually not democratic; even when they will adopt democratic procedure, but selective. Most laws governing local governments in Nigeria has a limited duration and condition for the operation of caretaker committee but most times, Governors amend the laws to suit their purpose. For instance, in Rivers State, section 9(4) (ii) of the Local Government Law of Rivers State, 2012 provides that: “where an emergency or any other situation arises which makes it impossible for the holding of Local Government election within the period stipulated under this law, the Governor shall upon the expiration of the tenure of the serving Council administration, appoint for each Local Government a Caretaker Committee of not more than seven persons (one of whom shall be the Chairman) from that Local Government Area.” The Law went further to limit the tenure of the Caretaker Committee to two terms of three months each. However, in October, 2016 the limitation section was removed by Rivers State Local Government (Amendment) Law, 2016.

In Governor of **Akwa Ibom State v Umah (2002) FWLR (Pt. 110) 1793, 1819**, the Court of Appeal held that it is unconstitutional for the Appellant to dissolve a local government council and appoint a caretaker committee in place of a democratically elected Local Government Council. The court held that a local government council cannot be dissolved except under a law which complies with the provisions of section 7(1) of the constitution. The court declared section 78 of the Akwa Ibom State Local Government (Administrative) Law, 2000 as unconstitutional and not available to the Governor to appoint an administrator since that is not synonymous with the establishment of democratically elected local government council.

This decision by the Court of Appeal is observed by most states in breach. This is ultimately aided by local government officials whose loyalties are not to the law but to the governors who appoint them and by extension, political godfathers that nominated them. Thus, the local government system became a mirage for most Nigerians and this contributed to the reason some author canvass for the dissolution of local government system in Nigeria.

For the purpose of this course, it should be noted that the National Assembly has no power to make laws for the local government in any state rather the State House of Assembly has such power. See section 4 (2), (6) and (7) of the 1999 Constitution. However, where at any time when any House of Assembly of a State is unable to perform its functions by reason of the situation prevailing in that State, the National Assembly may make such laws for the peace, order and good government of that State with respect to matters on which a House of Assembly may make laws as may appear to the National Assembly to be necessary or expedient until such time as the House of Assembly is able to resume its functions; and any such laws enacted by the National Assembly pursuant to this section shall have effect as if they were laws enacted by the House of Assembly of the State: provided that nothing in this section shall be construed as conferring on the National Assembly power to remove the Governor or the Deputy Governor of the State from office. See section 11 (4) of the 1999 constitution.

POWER TO LEGISLATE OVER LOCAL GOVERNMENT ELECTION MATTERS

It is the State House of Assembly that has the constitutional *vires* to make laws to regulate elections into Local Government Councils and not the National Assembly. Any such law made by the National Assembly will be a legislative transgression and an incursion into the legislative duties of the State House of Assembly.

See **Attorney-General of Abia State & 35 Ors v Attorney General of the Federation (2002) 6 NWLR (Pt.) 267 (Ratios 5, 8, 9, 16).** In this case, the federal government instituted an action against the 36 states to determine what constitute derivation from any natural resources in a state. Section 162(1) of the 1999 Constitution establishes the Federation Account into which shall be paid all revenues collected by the Government of the Federation. Section 162(2) of the Constitution empowers the National Assembly to determine the formula for the distribution of funds in the Federation Account by providing as follows:

> The President, upon the receipt of advice from the Revenue Mobilisation Allocation and Fiscal Commission, shall table before the National Assembly proposals for revenue allocation from the Federation Account, and in determining the formula, the National Assembly shall take into account, the allocation principles especially those of population, equality of States, internal revenue generation, land mass, terrain as well as population density.
>
> Provided that the principle of derivation shall be constantly reflected in any approved formula as being not less than thirteen per cent of the revenue accruing to the Federation Account directly from any natural resources.

The proviso to the sub-section entrenches, with respect to natural resources, the principle of derivation in any formula the National Assembly may come up with. By this principle "not less than thirteen per cent" of the revenue accruing to the Federation Account directly from any natural resource shall be payable to a State of the Federation from which such natural resources are derived. For a State to qualify for this allocation of funds from the Federation Account, the natural resources must have come from within the boundaries of the State, that is, the resources must be located within that State.

STATUTORY ALLOCATION OF PUBLIC REVENUE TO LOCAL GOVERNMENT

COUNCILS AND CONTROL OVER DISTRIBUTION OF ALLOCATED FUNDS TO LGAs

Local government, just as any organization needs finance to function appropriately. Therefore, the 1999 Constitution makes provision for statutory allocation of public revenue to local government councils. **Section 7(6) (a) and (b)** empowers the National Assembly and state House of Assembly respectively to enact a law for the statutory allocation of public revenue to local government councils in the federation and within the State respectively.

Similarly, Section 162 of the 1999 Constitution provides for the formula for sharing statutory allocations among the three tiers of government, namely: Federal, State and Local Government Areas. Section 162(3) provides:

> (3) Any amount standing to the credit of the Federation Account shall be distributed among the Federal and State Governments and the Local Government Councils in each State on such terms and in such manner as may be prescribed by the National Assembly.

Section 162(4) provides that the National Assembly shall have the power to prescribe the term and manner of distributing the amount standing to the credit of the States in the Federation Account among the States. It provides:

> (4) Any amount standing to the credit of the States in the Federation Account shall be distributed among the States on such terms and in such manner as may be prescribed by the National Assembly.

It is the responsibility of the National Assembly to allocate to the States for the benefit of their respective Local Government Councils, the amount standing to the credit of the Local Government Councils of the Federation, on the terms and in the manner prescribed by an Act of the National Assembly. This is the purport of Section 162(5) which provides that:

> (5) The amount standing to the credit of Local Government Councils in the Federation Account shall also be allocated to the State for the benefit of their Local Government Councils on such terms and in such manner as may be prescribed by the National Assembly.

Section 162(6) mandates each State to maintain a special account to be called "State Joint Local Government Account" into which shall be paid all allocations to the Local Government Councils of the State from the Federation Account and from the Government of the State. Also, Section 162(7) mandates each State to pay to Local Government Councils in its area of jurisdiction such proportion of its total revenue on such terms and in such manner as may be prescribed by the National Assembly.
However, **Section 162(8)** provides that the amount standing to the credit of Local Government Councils of a State shall be distributed among the Local Government Councils of that State on such terms and in such manner as may be prescribed by the House of Assembly of the State.

The Supreme Court of Nigeria has held that by a community reading of Section 7(6) (b) and Section 162(8), it is the House of Assembly of a State that has constitutional competence to enact laws regulating the distribution of public allocation of revenue to local government councils within a State and not the National Assembly. See **Attorney-General of Abia State & 2 Ors v Attorney General of the Federation & 33 Ors (2006) 16 NWLR (Pt. 1005) 265 (Ratios 7, 8, 9, 11, 12, 13, 19, 20 and 22).**

In the above case, **t**he National Assembly enacted the **Monitoring of Revenue Allocation to Local Government Act 2005** which established a **State Joint Local Government Account Allocation Committee and purported to prescribe the terms and manner in which the amount standing to credit of Local Government Councils (LGCs) in a State would be allocated to such LGCs.** The essence of this Act is to ensure that local governments' share of the revenue from the Federation Account is promptly paid and in compliance with the enabling laws. The Plaintiffs (Attorneys-General of Abia, Delta and Lagos States) challenged the constitutional validity of the Act on the grounds that:

(1) Except as regards the prescription of the terms on which the amount standing to the credit of the Federation will be distributed among the Federal Government, the States and the Local Government Councils, prescription of the terms upon which any amount standing to the credit of LGCs in the Federation Account is to be allocated to the States for the benefit of the LGCs is the function of a State House of Assembly and not that of the National Assembly; and

(2) Except as regards the establishment of the FCT Joint Area Council Allocation Committee and the FCT Joint Area Council Committee, it is the State House of Assembly and not the National Assembly that has power to make a law prescribing the terms and manner in which the amount standing to the credit of LGCs in a State shall be distributed.

The Supreme Court held that certain sections of the Act are *ultra vires* the powers of the National Assembly in that it is a State House of Assembly and not the National Assembly that has the legislative *vires* to make laws prescribing the terms and manner in which the amount standing to the credit of LGCs in a State is to be distributed to the affected LGCs.

In **Attorney-General of Bendel State v Attorney-General of the Federal and 22 Ors (1982) 3 NCLR 1,** the Attorney-General of Bendel State challenged the constitutional validity of the Allocation of Revenue (Federal Account, Etc) Bill 1980 on the grounds that:

(1) Certain sections of the Act conflicted with Sections 7(6), 149(4) and (5) of the 1979 Constitution (substantive defect); and

(2) The Act was not passed in accordance with the provisions of the Constitution (procedural defect) in that the Senate and the House of Representatives passed different versions of the bill and that though a Joint Conference Committee of both Houses met and approved the Senate version by majority votes, the bill was not sent back to each House to be passed again by EACH HOUSE of the National Assembly as required by the 1979 Constitution. The Supreme Court invalidated the entire Act on that ground.

Meanwhile, National Assembly is entitled to returns of local governments created by states and amending the Schedule of the constitution to include them. See section 8 (6) of the 1999 Constitution. In Nigeria, there are 774 Local government as contained in the First Schedule, Part 1 of the constitution. Thus, any creation of extra local government by any state will require constitutional amendment. In **Attorney-General, Lagos State v Attorney-General, Federation**

[2005] All FWLR (Pt. 244) 805 when Lagos state government created new LGAs in the state in line with the law made by the State House of Assembly, the Federal government without waiting for compliance of the state with respect to the making of returns ordered that the state should not be given statutory revenue due to the 20 LGAs enumerated in the Constitution at the time of its commencement. The Supreme Court held that state had no power to create Local Government Council areas but that, until the council areas are made part of the constitution, they are not constitutionally recognized and remain inchoate. It also held that the Federal Government had no right to withhold the revenues meant for the existing local government councils. Lagos state now converted the areas it created into **Local Council Development Area (LCDA)**. This now deterred other states that wanted to follow similar procedure.

From the discussions above, there has been agitation for equitable distribution of fund to Local Government from the State Joint Local Government account since 1982. Since the return to civil rule in 1999, there has been agitation for granting local governments' autonomy as a prescription for them to deliver efficiently and effectively their assigned responsibilities. Source of finance and its distribution determines autonomy of any agency. The autonomy of a local government councils is a cornerstone of effective governance and grassroots development. States have been responsible in the distribution of local government funds and this has been observed with some level of rascality including dissolution of democratically elected LGCs and the imposition of caretaker committees on the masses. Thus the Supreme Court decision in **Attorney General of Federation v Attorney General of Abia & 35 Ors in 2024** which grant and guarantees LGCs' autonomy by holding as follows:

1. It is illegal and unconstitutional for governors to continue to receive and seize funds allocated to the benefit of LGAs in their states. As the "dubious practice" which has gone on for over two decades, is a clear violation of Section 162 of the 1999 Constitution, as amended.

2. No House of Assembly of any state has the power to make laws that could in any manner, grant governors the right to interfere with statutory allocations meant for the council areas.

3. Stressing that the law mandated that LGAs must be governed by democratically elected officials, the Supreme Court ordered that forthwith, funds meant for councils must be directly paid to them from the federation account.

4. It further declared as unconstitutional, the appointment of caretaker committees, by governors to run the affairs of the LGAs.

5. It held that the 36 states are under obligation to ensure democratic governance at the third tier of the government.

6. Consequently, the Supreme Court ordered that, henceforth, funds of local governments where democratically-elected officials are not in place should be withheld.

7. It equally barred governors, their agents and privies from dissolving democratically elected local government officials in their state, adding that such action would amount to a breach of the Constitution and an act of misconduct.

8. Demands of justice require a progressive interpretation of the law. It is the position of this Supreme Court that the federation can pay LGA allocations to the LGAs directly or pay them

through the states. In this case, since paying them through states has not worked, justice of this case demands that LGA allocations from the federation account should henceforth be paid directly to the LGAs.

By the decision of the Supreme Court, the importance of decentralization and empowerment of local government councils to manage their affairs independently has been reinforced. It is the expectation of Nigerians that this decision will enhance the capacity of LGCs to deliver essential services, promote regional economic development, and improve the quality of the life of citizens at grassroots level. All over the world and especially in Africa, local government is seen as a means of enhancing development and service delivery, improve governance and deepen democracy

FUNCTIONS OF LOCAL GOVERNMENT COUNCIL

Section 7(5) of the 1999 Constitution provides that the functions to be conferred by law upon a local government council shall include those specified in the Fourth Schedule to the Constitution. The word 'include' means that a State Local Government Law may confer additional functions on local government councils. These functions in their execution impact the rights of citizens and there is great need for local government councils to observe due process in executing them in other not to infringe upon the rights of the affected citizens. The supreme court in **Agbai v Okogbue [1991] 9-10 SCNJ 49, 67; [1991] 7NWLR (Pt. 204) 391**, per Nwokedi, JSC, insists on the rights of citizens not being infringed upon in the enthusiasm to carry out programs or projects no matter how laudable they may be.

The main functions of a local government council as enunciated in the Fourth Schedule to 1999 constitution are as follows:

(a) the consideration and the making of recommendations to a State commission on economic planning or any similar body on–
  (i) the economic development of the State, particularly in so far as the areas of authority of the council and of the State are affected, and
  (ii) proposals made by the said commission or body;
(b) collection of rates, radio and television licenses;
(c) establishment and maintenance of cemeteries, burial grounds and homes for the destitute or infirm;
(d) licensing of bicycles, trucks (other than mechanically propelled trucks), canoes, wheel barrows and carts;
(e) establishment, maintenance and regulation of slaughter houses, slaughter slabs, markets, motor parks and public conveniences;
(f) construction and maintenance of roads, streets, street lightings, drains and other public highways, parks, gardens, open spaces, or such public facilities as may be prescribed from time to time by the House of Assembly of a State;
(g) naming of roads and streets and numbering of houses;
(h) provision and maintenance of public conveniences, sewage and refuse disposal;
(i) registration of all births, deaths and marriages;

(j) assessment of privately owned houses or tenements for the purpose of levying such rates as may be prescribed by the House of Assembly of a State; and
(k) control and regulation of –
(i) out-door advertising and hoarding,
(ii) movement and keeping of pets of all description,
(iii) shops and kiosks,
(iv) restaurants, bakeries and other places for sale of food to the public,
(v) laundries, and
(vi) licensing, regulation and control of the sale of liquor.

Item 2 of the Fourth Schedule went further to provide additional functions for local government councils. The functions of a local government council shall include participation of such council in the Government of a State as respects the following matters –

a. the provision and maintenance of primary, adult and vocational education;
b. the development of agriculture and natural resources, other than the exploitation of materials
c. the provision and maintenance of health services; and
d. such other functions as may be conferred on a local government council by the House of Assembly of the State.

The state house of assembly can elaborate the functions of the local government council. However, a State government can neither carry out a function expressly granted to local government councils under a law nor perform any of the functions exclusively reserved for local government councils in the Fourth Schedule to the 1999 Constitution. See **Knight Frank and Rutley (Nig) Ltd. v Attorney-General of Kano State (1985) 2 NWLR (Pt. 6) 211** where the court held that:

> Once the state passes a legislation assigning the function of valuation of tenement rates to the local government as the constitution has directed, only the local government council will have the power to deal with the subject matter. The state has no power to deal with the matter and the local government council cannot, even if it wants to, divest itself of those powers.

PURPOSE A LOCAL GOVERNEMNT

The following can be attributed as the purposes for the creation of local governments:

1. **Grassroots participation in governance:** One of the major reasons for the creation of local government in Nigeria is to bring governance closer to the people. Participation by the citizens-in-governance is one of the underlying precepts of democracy and the modern notion of government. This is done through participation in the electoral processes and decision making in the local communities. For this reason, local governments also serve as political incubators for budding politicians. They afford future leaders the opportunity to undergo political training (See section 7 of the Constitution of the Federal Republic of

Nigeria 1999 which provides that the system of local government by democratically elected local government councils is under this Constitution guaranteed).

2. **Administrative convenience:** Local governments are created for administrative practicality and suitability. There are many functions that will be cumbersome for the State and Federal Governments to perform because of the distance separating them and the people. Such functions can be best and effectively performed by the local government, e.g. collection of rates, radio and television licenses, and the registration of births, deaths and marriages. Local government is also created to serve as the presence of the federal and state governments amongst the local people and as a channel through which policies are communicated and implemented.
3. **To provoke development:** Local governments are created to bring about meaningful development in the rural areas. As agents of rural development, they are to use the funds made available to them by both federal and state governments and their internally generated revenue to improve on the lives of the people within their areas of operation through the following economic development in line with section 7(3) and (4) of the Constitution: a. Initiating and attracting developmental projects to the local government such as provision of access roads, water and rural electricity; b. Sustaining livelihoods through the provision of credit facilities for agriculture, arts, crafts and small scale business; and c. Encouraging the formations of cooperative societies and other economic groupings.
4. **Preserve the heritage and common interest of the people:** The creation of Local Government is intended to bring people of common heritage or ancestry together as a political unit to further their interest and increase their participation in government business. In Nigeria today, there are over 250 ethnic groups with diverse cultures and tongues. These ethnic groups are further divided into communities. These communities form the constituents of most Local Governments in Nigeria. By carving out Local Governments amongst people of the same community, government is preserving such long 'traditional association' and using same to foster the interest of the people concerned.

LOCAL GOVERNMENT ADMINISTRATIVE STRUCTURE

The administrative structure of local governments is both constitutional and statutory. Local government is made up of both elected and administrative staff. Part II of the third schedule to the Constitution establish for each state of the federation a State Independent Electoral Commission responsible for organizing, undertaking and supervising all elections to local government councils within a state. The local government Laws of states in Nigeria recognized an elected local government council to be a corporate entity with perpetual succession and common seal. Accordingly, local governments have two principal powers: legislative and executive. The executive powers extend to the execution and maintenance of the laws enacted by the Houses of Assembly of State and Byelaws made by the councils while the legislative powers performed by the elected councilors headed by a Leader and Deputy Leader selected by the councilors within themselves are carried out through the supervision and oversight of the day-to-day business of the local governments and enactment of Byelaws subject to the assent of the chairman of a local government council.

On eligibility or qualification to be elected as a member of a local government, section 7 (4) of the constitution provides that a State government shall ensure that every person who is entitled to vote or be voted for at an election to House of Assembly shall have the right to vote or be voted for at an election to a local government council. See sections 106 and 107 for the qualifications and disqualifications for membership of House of Assembly.

It was held in **INEC v Musa [2003] FWLR (Pt. 145) 729** that the House of Assembly or State Electoral Commission cannot create additional qualifications.

Other administrative staff of a local government includes the secretary, Head of Personnel Management, treasurer etc. As important as this tier of government has been, there seem to be some hurdles that have tamed its performance and functions in recent times. These problems involve the undue interference of federal and state governments (which is political in nature), bribery and corruption, and ill-trained and unqualified personnel to mention a few.

CONCLUSION

The importance of the creation of local government anywhere in the world reveals the need to aid development at the grassroots. The local government is constitutionally and statutorily provided for and all of the actions to be carried out by its officials; whether elected of staff, must be in accordance with the law.